

Calendar Line 1

Case Name: *Richard Deane et al. v. Lakeview Condominium Homeowners' Association et al.*

Case No.: 24CV444146

I. BACKGROUND

This is an action arising out of an employment dispute between plaintiffs Richard Deane and Christopher Rivas (hereinafter, "Plaintiffs") and defendants Lakeview Condominium Homeowners' Association ("Lakeview"), Jeff Vinson ("Vinson"), and various Does.

Plaintiffs filed the original and still-operative complaint in this matter on July 29, 2024. The complaint states six causes of action: (1) Failure to Pay Minimum Wage (Labor Code Section 1194), brought by Deane only; (2) Nonpayment of Wages (Labor Code Sections 201 and 202), brought by Deane only; (3) Failure to Provide Time Records and Itemized Statements (Labor Code Sections 226 and 1174), brought by Deane only; (4) Failure to Pay Wages Upon Discharge (Labor Code Sections 201, 202 and 203), brought by Deane only; (5) Retaliation (Labor Code Section 1102.5), brought by both Plaintiffs; and (6) Termination in Violation of Public Policy, brought by both Plaintiffs. There are no exhibits attached to the complaint.

Currently before the court is a motion to strike portions of the complaint brought by Lakeview and Vinson (hereinafter, "Defendants"). Defendants filed the motion on October 21, 2024. Plaintiffs filed an opposition on November 26, 2024. A reply (from Vinson only) was filed on February 10, 2025.¹

II. REQUEST FOR JUDICIAL NOTICE

Plaintiffs have submitted a request for judicial notice in support of their opposition to the motion. "Judicial notice may not be taken of any matter unless authorized or required by law." (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307 [citing *People v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2].) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to "[furnish] the court with sufficient information to enable it to take judicial notice of the matter."

Plaintiffs request judicial notice of a civil complaint filed against Lakeview (but not Vinson) in the U.S. District Court for the Northern District of California. The court DENIES the request, as this document is irrelevant to the court's consideration of the motion to strike.

¹ Lakeview obtained separate counsel after the filing of the motion, on December 12, 2024.

III. MOTION TO STRIKE PORTIONS OF THE COMPLAINT

A. General Standards

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); see also *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the challenged pleading as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63, [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].)

A motion to strike may be brought against a portion of a cause of action that is purportedly defective—e.g., because it seeks an improper remedy. (See *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680.) At the same time, as Courts of Appeal have emphasized, “[W]e have no intention of creating a procedural ‘line item veto’ for the civil defendant.” (*Id.* at p. 1683.) Rule 3.1322(a) of the California Rules of Court requires that “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count or defense. Specifications in a notice must be numbered consecutively.”

The court cannot consider extrinsic evidence in ruling on a demurrer or a motion to strike. Extrinsic evidence includes declarations. The court has not considered the declaration of Andrew Benzinger submitted with the motion, the attached exhibits, or any arguments in the supporting memorandum that depend upon this extrinsic evidence. The court has also not considered the second declaration from Andrew Benzinger filed with Vinson’s reply. In addition to being improper extrinsic evidence, the “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273; see also *REO Broadcasting Consultants v. Martin* (1999) 69 Cal.App.4th 489, 500 [“This court will not consider points raised for the first time in a reply brief for the obvious reason that opposing counsel has not been given the opportunity to address those points.”].)

B. The Meet-and-Confer Requirement

As an initial matter, the opposition correctly points out that Defendants failed to meet and confer as required by statute. Code of Civil Procedure section 435.5 states that before filing a motion to strike, the moving party “shall” meet and confer “in person, by telephone, or by video conference” with the party who filed the pleading and “shall” file a declaration with the motion to strike describing these efforts. (See Code Civ. Proc., § 435.5, subd. (a).) This is the only statutory authorization for the filing of a declaration in support of a demurrer or motion to strike. The first Benzinger declaration submitted with the motion makes no mention of any meet-and-confer efforts. Nevertheless, because section 435.5, subdivision (a)(4) expressly states that insufficient meet-and-confer efforts “shall not be grounds to grant or deny the motion to strike,” the court will consider the motion on the merits.

C. The Basis for the Motion to Strike

Defendants seek to strike the complaint “as to defendant Vinson” on the ground that it “is improper as Plaintiffs do not allege any causes of action that [apply] individually to a single member of the Board of Directors of [Lakeview].” This part of the motion is “made pursuant to California’s Davis-Stirling Act, Civil Code § 5800 *et seq.*, and California’s ‘Business Judgment Rule’ (Corporation Code § 7231).”

The court has reviewed these two statutes and concludes that they do not provide any additional basis for a motion to strike beyond what is already provided in Code of Civil Procedure sections 435 and 436.

Defendants also argue that the complaint is improper because it “contains irrelevant, false, or improper matters asserted in the pleading, which are irrelevant or improper with regard to the stated causes of action.” Defendants seek to strike paragraphs 15, 17, 18, 19, 20, 22, and 23. (See Notice of Motion, p. 2:3-19.) These paragraphs are all part of the complaint’s general allegations that are incorporated by reference into each cause of action.

D. Discussion

The court DENIES the motion to strike in its entirety.

First, Defendants’ motion depends in large part upon extrinsic evidence—the Benzinger declarations—that cannot be considered by the court in ruling on the motion.

Second, as the opposition points out, despite technically seeking only to *strike* certain paragraphs, the motion repeatedly argues that the complaint fails to state sufficient facts or that entire causes of action are barred by affirmative defenses. (See Memorandum, pp. 3:14-20 and 8:20-9:12.) A motion to strike is not a demurrer and cannot be used to attack general allegations on the ground that they fail to state sufficient facts. (See *Pierson v. Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342 “[A] motion to strike is generally used to reach defects in a pleading which are *not* subject to demurrer.”) [Emphasis added.]) Code of Civil Procedure section 436, subdivision (a), “does not authorize attacks on entire causes of action, let alone entire pleadings.” (*Ferraro v. Camarlinghi* (2008) 161 Cal. App. 4th 509, 528 [citing *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1281].) “Its purpose is to authorize the excision of superfluous or abusive allegations.” (*Ibid.*) Defendants have not shown that it is apparent from the face of the complaint that paragraphs 15, 17, 18, 19, 20, 22, and 23 are improper or irrelevant to all causes of action alleged in the complaint. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (See Code Civ. Proc., § 431.10, subds. (b) and (c).)

Third, even if Defendants had brought a demurrer challenging the *sufficiency* of specific causes of action rather than a motion to *strike* general allegations, “a demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense.” (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191.) Here, it is not apparent from the face of the complaint that any of the causes of action are necessarily barred by the Davis-Stirling Act or the business judgment rule.

Defendants are directed to answer the complaint within 10 days of notice of entry of this order.² (See Code Civ. Proc., § 472a, subd. (d).)

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² The court denies Vinson's request, raised for the first time in reply, for leave to "file a [d]emurrer or other response." (See Vinson Reply, p. 3:7-8.) At this point, a demurrer is untimely.

Calendar Line 2

Case Name: *Al Nieves v. County of Santa Clara*

Case No.: 21CV391798

This case arises out of a tragic auto collision in which the two adult children of plaintiff Al Nieves (“Nieves”), Philip and Precious Nieves, were struck and killed by a driver who was being pursued by a Santa Clara County Sheriff’s Deputy. Nieves filed a complaint for negligence against defendant County of Santa Clara (the “County”), alleging that the County is liable for the “negligent and reckless” actions of its Deputy because it failed to adopt a motor vehicle pursuit policy in accordance with Vehicle Code section 17004.7. The County now brings a motion for summary judgment as to the sole cause of action for negligence in the complaint.

I. BACKGROUND

According to the complaint, on April 26, 2021 at approximately 9:55 p.m., Sheriff’s Deputy “Vasey” (later corrected to “Vesey”) saw a vehicle changing lanes and performing a U-turn without signaling. That vehicle was later determined to be driven by Alberto Garcia (“Garcia”). (Complaint, ¶ 7.) Vesey signaled Garcia to stop the vehicle by flashing the overhead lights of his patrol car. (*Ibid.*) Garcia did not stop and fled. (*Ibid.*) Vesey initiated a high-speed pursuit of Garcia, with lights flashing, northbound on Lawrence Expressway near Archbishop Mitty High School. (*Ibid.*) At no time did Vesey activate a siren, horn, or other audible device on his vehicle. (*Ibid.*)

While Vesey was pursuing Garcia, Philip and Precious Nieves were driving southbound on Lawrence Expressway. (Complaint, ¶¶ 2, 8.) As they approached the intersection of Lawrence Expressway and Mitty Way and prepared to make a left turn across Lawrence Expressway onto Mitty Way, Nieves contends that there was nothing to alert them that Vesey was conducting a high-speed pursuit of Garcia and approaching in the opposite direction. (*Ibid.*) As their vehicle continued turning left onto Mitty Way, Garcia’s vehicle broadsided them. (*Ibid.*) Both Philip and Precious were pronounced dead at the scene. (*Ibid.*)

On December 6, 2021, Nieves filed his complaint, alleging a single cause of action for negligence against the County. On May 31, 2024, the County filed the present motion for summary judgment. This matter was originally calendared for a hearing in December 2024 but then mistakenly taken off calendar by the court clerk’s office for two months. The court ultimately rescheduled the matter for a hearing on February 25, 2025.

II. REQUEST FOR JUDICIAL NOTICE

The County has submitted a request for judicial notice with their motion. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory forms is that the matter to be noticed must be relevant to a material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307, fn. 18, citing *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2.) It is the court, and not the parties, that determines relevance. Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.” (Evid. Code, § 453, subd. (b).)